

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 20
JUDICIAL OFFICER: MELISSA O'CONNELL
HEARING DATE: 09/10/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter.
(Local Rule 3.43(2).)

Note: In order to minimize the risk of miscommunication, parties are to provide an EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED. Dept. 20's email address is: dept20@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 20 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling must be attached to the proposed order when submitted to the Court for issuance of the order.

Discovery Law & Motion

1. 9:00 AM CASE NUMBER: C23-02534
CASE NAME: CITY OF WALNUT CREEK VS. WINDSOR CAPITAL GROUP, INC.
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER DISCOVERY RESPONSES
FILED BY: CITY OF WALNUT CREEK
TENTATIVE RULING:

Plaintiff's Motion seeks to compel Defendant Windsor Capital Group, Inc. (WCG) to provide further responses to Plaintiff's Request for Admissions (Set Two), Form Interrogatories (Set Two), and Special Interrogatories (Set One) pursuant to Code of Civil Procedure sections 2033.290(c) and 2030.300(c). Plaintiff also seeks sanctions jointly against Defendant and their attorney in the amount of \$50,227.87 pursuant to Code of Civil Procedure sections, 2023.020, 2023.030, subdivision (b), 2033.290, subdivision (d), and 2030.300, subdivision (d).

The court addresses Plaintiff's requests in turn.

(1) Requests for Admissions (Set Two), Nos. 11-21, 24, 28 and 29
Plaintiff's motion to compel further responses to Requests for Admissions Nos. 11-21, 24, 28 and 29 is GRANTED. The court orders Defendant to provide Plaintiff with complete,

objection-free, code-compliant, further responses by September 30, 2026.

Each of Plaintiff's Requests for Admissions ask specifically as to whether the Defendant collected the Transient Occupancy Tax or the 3% assessments for Tourism Business Improvement District and remitted those funds to the City of Walnut Creek specifically for the periods of December 1, 2019 to June 1, 2025. To each request for admission Defendant provided the same responses: 1) limiting the term "You" to only include Defendant Windsor Capital Group, Inc. as a corporate entity and not "its shareholders, owners, officers, employees, and agents" or any in any individual capacity; 2) objecting that each request was asked and answered through prior discovery requests; and 3) offering a denial to the affirmative question, implying that these taxes, for example were not collected, but followed by a sentence qualifying that to their knowledge the taxes were collected and remitted.

"Most of the other discovery procedures are aimed primarily at assisting counsel to prepare for trial. Requests for admissions, on the other hand, are primarily aimed at setting at rest a triable issue so that it will not have to be tried. Thus, such requests, in a most definite manner, are aimed at expediting the trial.." (*Cembrook v. Superior Court of San Francisco* (1961) 56 Cal. 2d 423, 429, see also C.C.P. §2033.010.)

Furthermore "asked and answered" is not a valid objection based on prior discovery, rather the remedy for a party's belief that repeated requests result in unwarranted annoyance, embarrassment, or undue burden or expense, is a protective order, not a refusal to respond. (See *Coy v. Superior Court* (1962) 58 Cal.2d 210, 218.)

It follows that the selection of the method of discovery to be utilized is to be made by the party seeking discovery. It cannot be dictated by the opposing party. (See *Pember v. Superior Court* (1966) 240 Cal.App.2d 888, 889-890; *Darbee v. Superior Court* (1962) 208 Cal.App.2d 680, 686-687.) Moreover, the choice is subject to a trial court's control only to the extent consistent with express statutory limitations. (*Greyhound Corp. v. Superior Court, supra*, 56 Cal.2d at p. 383.) A party is permitted to use multiple methods of obtaining discovery and the fact that information was disclosed under one method is not, standing alone, a proper basis for refusing to provide discovery under another method. (*Coy v. Superior Court* (1962) 58 Cal.2d 210, 218-219.)

Irvington-Moore, Inc. v. Superior Court (1993) 14 Cal. App. 4th 733, 739.

Defendant argues that their initial responses to the requests for admissions invoked their fifth amendment privilege because the alleged conduct would expose them to potential criminal liability under the Walnut Creek Municipal Code and therefore they had to limit their interpretation of the term "You" in order to safely answer the requests notwithstanding this concern. What confounds the court however is that Defendants main position as it relates to all of Plaintiff's motions to compel further responses to discovery is that Plaintiff misunderstands or ignores the fact that WCG was not the entity responsible for collecting or remitting the

aforementioned taxes and assessments, rather it was Walnut Creek Opco LLC ("Opco"), a separate legal entity. If Opco was in fact a separate legal entity then why would not all WCG's shareholders, owners, officers, employees, and agents, in individual capacity, also be outside the possible range of criminal prosecution such that Defendant's could provide complete answers in response to the requests for admission. In summary, Defendant's responsive are evasive. They inappropriately limit their answers to exclude all shareholders, owners, officers, employees, and agents in an effort, it would appear, to insulate themselves from liability. Their objections regarding the requests being asked and answered are without merit. And finally, despite what would appear to be a code-compliant answers to the requests, that is a "denial," Defendant's subsequent explanation appear to contradict the statement leaving the reader in complete confusion as to their position. While Defendant's Opposition to Plaintiff's motion to compel offers some clarity on what they meant by their responses, they do not say as much in their responses to the requests for admissions; had they done so this motion would likely be unnecessary.

Furthermore, Defendant's argument that the motion to compel should be denied because Plaintiff failed to file within 45 days of receiving their initial verified responses is specious given that according to Plaintiff, Defendant ultimately stipulated to the February 2026 deadline for Plaintiff to file their motion to compel.

Plaintiff's motion to compel further responses to Requests for Admissions Nos. 11-21, 24, 28 and 29 is GRANTED. The court orders Defendant to provide Plaintiff with objection-free, complete, code-compliant, further responses by September 30, 2026.

(2) Form Interrogatory, No. 17.1 (subparts (a) – (d) for Requests for Admissions, Nos. 11-21, 24, 28, and 29)

Plaintiff's Motion to Compel further responses to Form Interrogatory, No. 17.1 is DENIED.

It may appear that the court contradicts itself given Form Interrogatory, No. 17.1 is integrally connected to Plaintiff's responses to the aforementioned Requests for Admissions; however, just as Defendant cannot rely on the fact that they answered previous requests in different discovery methods, this court examines each response to the respective discovery method separate from one another. In doing so, this court finds that Defendant's subsequent further responses provided in response to Form Interrogatory 17.1 were code compliant and further responses are not warranted. As Plaintiff states Request No. 17.1 called upon Defendant to provide basic information explaining an answer by identifying witnesses, documents, and facts to support the answer. While the court understands Plaintiff's position that Defendant both admitted and denied the same fact in its responses to Requests for Admissions, the answers to Form Interrogatory 17.1 are not similarly evasive and do not warrant further responses.

(3) Special Interrogatories, Nos. 1-3 and 12-15

With respect to Special Interrogatories 1-3: These requests appear to seek the identity of potential witnesses that hold specific positions within WCG. While the court agrees with Plaintiff that Defendant's responses include meritless objections, Plaintiff fails to acknowledge that Defendant also provided substantive code-compliant responses.

Thus, Plaintiff's Motion to Compel further responses to Special Interrogatories Nos. 1-3 is DENIED.

With respect to Special Interrogatories Nos. 12-15: These Interrogatories similarly seek the identity of the owners and board of Directors of Defendant, who have decision-making authority over the corporation, such as the decision to refuse reporting and paying to the Plaintiff the taxes and assessments at issue.

Special Interrogatories, Nos. 12-15, ask Defendant to identify additional witnesses with knowledge of its decision not to remit to the Plaintiff the taxes and/or assessments it collected from its hotel guests. This court agrees that this information goes directly to Plaintiff's causes of action against Defendant. Defendant's objections again are meritless. The requests are not vague or overly broad. Defendant knew the time periods at issue as they appear repeatedly throughout the other discovery requests, the term "you" is not overly broad such that it results in an undue burden on Defendants and was supported by any evidence that it would, and Defendant's criticism of the word "consulted" as potentially meaning "any communication in any medium" is arguably exactly as intended by Plaintiffs when they chose that word.

Plaintiff's motion to compel further responses to Special Interrogatories, Nos. 12-15 is GRANTED. Defendant is to provide objection-free, code-compliant responses by September 30, 2026.

1) Sanctions.

The court finds Defendant's conduct warrants sanctions, however, not nearly the amount sought by Plaintiff.

Plaintiff directs this court to *Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.* (2020) 56 Cal. App. 5th 771, where the court ordered \$586,600 in sanctions. However, this case is distinguishable. In *Cornerstone*, sanctions were originally sought for \$2 million. There were several factors that contributed to the court's order for such significant sanctions, none of which support Plaintiff's request here for over \$50,000. In *Cornerstone*, Plaintiff failed to produce the documents, directly disobeying the court's order to do so and were previously sanctioned by the court for their discovery misuse and yet, Plaintiff's still did not change their conduct. "Of the principles governing discovery sanctions, three—the principle of compulsion, the principle of causation, and the principle of reasonableness—are relevant here and guide our decision." (*Cornerstone, supra*, 777.)

The first principle is compulsion: If a monetary sanction is authorized, “the court *shall impose* that sanction” unless the court finds that the person subject to the sanction either acted with substantial justification or imposition of sanctions would be unjust under the circumstances. (§ 2023.030(a), italics added.)...The second principle is causation: Monetary sanctions for engaging in misuse of the discovery process may only be imposed based on attorney fees and costs “incurred by anyone *as a result of* that conduct.” (§ 2023.030(a), italics added.) In *Department of Forestry & Fire Protection v. Howell* (2017) 18 Cal.App.5th 154, 195, the Court of Appeal reversed an order awarding monetary sanctions because the discovery motions did not explain how attorney fees had been incurred as a result of the discovery abuses...The third principle, and the most significant one for our purposes, is reasonableness: The amount of monetary sanctions is limited to the “*reasonable* expenses, including attorney's fees” that a party incurred as a result of the discovery abuse. (§ 2023.030(a), italics added.) The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award. (*Parker v. Wolters Kluwer United States, Inc.* (2007) 149 Cal.App.4th 285, 294; *Ghanooni v. Super Shuttle* (1993) 20 Cal.App.4th 256, 262.)

(*Cornerstone*, *supra*, pp. 790-791.)

While several discovery statutes compel sanctions under the circumstances, (See e.g. Code of Civil Procedure sections, 2023.020, 2023.030, subdivision (b), 2033.290, subdivision (d), and 2030.300, subdivision (d)), Plaintiff’s counsel fails to provide this court with adequate support for the sanctions sought and this court finds, under the circumstances, the sanctions amount to be unreasonable.

A factor this court considered in determining the reasonableness of the sanctions amount was the wildly different recitation of the meet and confer efforts by the parties. There must be a “serious effort at negotiation and informal resolution” and “the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1438-1439; See also *Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1293.) “Argument is not the same as informal negotiation; attempting informal resolution means more than the mere attempt by the discovery proponent to persuade the objector of the error of his ways; and a reasonable and good faith attempt at informal resolution entails something more than bickering with opposing counsel. Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (*Clement*, *supra*, p.1294.)

In summary, while the court acknowledges numerous contacts between the parties, in all mediums, the court does not find that the parties made good faith efforts to reach a resolution to these issues. The court orders Defendant to pay reasonable sanctions in the amount of \$2,500 by September 30, 2026.